

Board Counter of June 10, 2019

MEMORANDUM OF UNDERSTANDING

between the

**BRECKSVILLE-BROADVIEW HEIGHTS
BOARD OF EDUCATION**

and the

**BRECKSVILLE-BROADVIEW HEIGHTS
EDUCATION ASSOCIATION**

CUYAHOGA COUNTY

Effective July 1, 2016 through June 30, 2021

SECTION 5 – FAIR SHARE FEE

A. Automatic Payroll Deduction (See Paragraph K, below)

The Board agrees to automatic payroll deduction, as a condition of employment, of an amount equal to the dues of the United Education Profession (B.E.A., UniServ, NEOEA, OEA, NEA) from the pay of all members (excluding members on leave of absence and casual substitutes) who elect not to become members of the United Education Profession (UEP), or who elect not to remain members.

B. Implementation

The Board Treasurer, upon notification from the B.E.A. that a member has terminated membership, shall commence the check-off of the fair share fee with respect to the former member, and the amount of the fee yet to be deducted shall be the annual membership dues less the amount previously paid through payroll deduction.

C. Commencement

Payroll deduction of such fair share fee shall begin with the first paycheck in February and shall continue through the first paycheck in August.

D. Transmission of Rates

Dues rates and fair share fee rates shall be transmitted by the B.E.A. to the Board's Treasurer for the purpose of determining amounts to be payroll deducted, and the Board agrees to promptly transmit all amounts deducted to the B.E.A.

E. New Hires

The Board's Treasurer shall inform the B.E.A. when there is a newly-hired teacher after the school year begins within five (5) calendar days of that teacher being hired. If that teacher elects not to join the B.E.A., the B.E.A. shall inform the Board's Treasurer of that within thirty (30) calendar days of that teacher's date of hire and shall also inform the Board's Treasurer as to that teacher's annual fair share fee. Payroll deductions, in substantially equal amounts, shall commence on the first pay date after the later of sixty (60) calendar days of employment or the first paycheck in February and shall continue through the first paycheck in August.

F. Provisions of Records

The Board agrees to provide B.E.A. with an initial list of names of teachers for whom such deductions are being made and the amount deducted for each. The B.E.A. will be notified of any changes in the initial list.

G. Appeal

Upon timely demand, non-members may appeal to the OEA the payment of the fair share fee pursuant to the internal procedure adopted by the OEA or such non-members may submit such appeals as provided by law.

H. Amount

Nevertheless, the amount to be deducted from the pay of all non-Association members shall be the full dues of the UEP unless the B.E.A. notifies the Board Treasurer to the contrary, and such deductions shall continue through the remaining number of payroll periods over which B.E.A. membership dues are deducted.

I. Exclusive Right of B.E.A.

The above fair share fee provision shall be an exclusive right of the B.E.A. not granted to any other organization seeking to represent teachers in the bargaining unit represented by the B.E.A.

J. Defense and Indemnification

B.E.A. agrees to indemnify, defend, and hold the Board and administration, including each individual Board member, harmless for any cost or liability incurred as a result of the implementation and enforcement of this provision. B.E.A. reserves the right to designate the attorneys for the purpose of responding to any claims, demands, suits, or other forms of action hereunder. The Board shall give B.E.A. written notice of any claim or demand arising out of or in any way related to the implementation of this provision within ten (10) calendar days after receipt of such demand or claim. The Board will cooperate with the B.E.A. at all levels of any proceedings.

K. Any provisions of this section that were declared unconstitutional by the U.S. Supreme Court in *Janus v. American Federation of State, County, and Municipal Employees, Council 31*, shall no longer apply, unless or until the *Janus* decision is overturned or modified by future Supreme Court rulings and/or changes in state or federal law. All other provisions of this Article which are unaffected by the scope of the *Janus v. American Federation of State, County, and Municipal Employees Council 31*, shall remain in full force and effect.

SECTION 15 – WORKING CONDITIONS

A. Length of the Teacher's Day

1. The teacher workday shall be as follows:
 - a. All teachers' workdays will be eight hours.
 - (1) 7:10 a.m. to 3:10 p.m. – High School ~~and Middle School~~
 - (2) ~~8:00 a.m. to 4:00 p.m. – Central School~~ 7:20 a.m. TO 3:20 p.m. – MIDDLE SCHOOL
 - (3) ~~8:30 a.m. to 4:30 p.m. –~~ 8:00 a.m. – 4:00 a.m. - Elementary Schools K-3 4
 - (4) 7:30 a.m. to 3:30 p.m. – Stepping Stone

The Changes contained in Paragraph A of Section 15 will be for the 2019-2020 and the 2020-2021 school years only. If an extension of the above bell schedule is needed after the 2020-2021 school year, it shall be by mutual agreement between B.E.A. and the BBHCSD BOE.

- b. The sixty (60) minutes per week of PLC time may be scheduled through mutual PLC decision in sixty (60) minute blocks and occur beyond the scheduled eight (8) hour workday, whereby Association members will be provided flexible time on another day(s). Association members shall notify their building administration prior to using flexible time.
- c. Thirty (30) hours of administratively-called meetings per year (exclusive of student disciplinary meetings, IEP meetings, and emergency meetings called by the Superintendent) scheduled during the eight (8) hour workday.
- d. Three Hundred Forty (340) minutes of planning time per week for elementary teachers during the student day.
- e. Four Hundred (400) minutes of planning time per week for middle school and high school teachers during the student day.
- f. If a staff member is unable to attend a scheduled PLC meeting, an equivalent alternative will be developed between the teacher and his/her supervisor.

2. School Year

- a. The parties acknowledge that from time to time certain circumstances arise whereby it may be prudent to adjust the starting and ending times of a teacher workday.
- b. When such circumstances arise, and upon the mutual agreement between the teacher and the building administrator, and with prior written approval of the teacher's building principal, the starting and ending time of a teacher's workday may be adjusted to times which are different from the teacher workday consistent with the parameter that the adjusted workday or make-up day time arrangement must still conform with the eight (8) hour workday requirement for teachers.

B. Lunch Time

All teachers shall be granted a minimum forty (40) minute lunch period without assigned responsibilities. The pass time between bells shall not be included in the calculations of a teacher's lunch period. When necessary, and with mutual agreement between the Superintendent (or designee) and the B.E.A. President, the forty (40) minute lunch period may be reduced to accommodate other instructional needs and objectives. The occasional shortening of the forty (40) minute lunch period for routine activities such as assemblies, pep rallies or early releases shall not be subject to this provision. However,

in no instance shall lunch be shortened to less than 35 minutes under any of the aforementioned circumstances.

C. School Year

1. The school year shall consist of one hundred eighty-six (186) days.
 - a. The first two teacher days of the school calendar shall be for building and District meetings and teacher work; however, the meetings will not exceed the equivalent of one (1) day.
 - b. The last day of the first and third quarters shall be one-half ($\frac{1}{2}$) day for professional development (3.5 hours) and one-half ($\frac{1}{2}$) day for teacher work.
 - c. The last day of each semester shall be one-half ($\frac{1}{2}$) teacher work day and one-half ($\frac{1}{2}$) unassigned day.
 - d. The Wednesday before Thanksgiving shall be release time in exchange for the two (2) parent teacher conferences.
2. Teachers new to the district are required to attend a two-day new teacher orientation **OF WHICH THE SECOND DAY WILL BE PAID AT THE TEACHER'S PER DIEM RATE.** ~~at the discretion of the Board. The scheduled meeting(s) will not exceed the equivalent of one (1) day.~~
3. There shall be one (1) student early release day on the last student day of the school calendar for teacher work.
4. Students enrolled in the Developmental Preschool Program shall have a delayed start to the school year for the first three (3) regularly scheduled student days and shall be released early from attending the last four (4) regularly scheduled student days.
5. There shall be a Professional Development Committee at each building that is comprised of teachers and at least one (1) administrator. Additionally, there shall be a District Professional Development Committee comprised equally of administrators and teachers. One (1) person from each Building Professional Development Committee shall serve on the District Professional Development Committee.
6. In the event that calamity days are to be made up if the amount used in a school year is in excess of five (5), a committee will be formed consisting of one representative from the Brecksville-Broadview Heights Education Association, one representative from the Brecksville-Broadview Heights Organization of

Support Staff, one administrator, and one community member. The committee will make a recommendation to the Board as to when the days should be made up.

Calamity make up days will be reflected on the District's calendar. In the event of a delayed start due to District-wide or building calamity, teachers will be expected to report to work at their normal schedule unless directed otherwise. Such directive to remain at home shall not be unreasonably withheld. Teachers shall not be reprimanded if adverse weather conditions prevent them from reporting at this regularly scheduled time on days where there is a delayed start for students.

D. Assignment

1. The Superintendent, after consultation with the building principal or principals, will assign teachers or reassign teachers to buildings within the system. Building principals are responsible for assigning each teacher his/her instructional and non-instructional work load. The assignments are normally regarded as annual assignments but may be modified during the year by the principal as conditions warrant. No teaching assignment is regarded as permanent.
2. Prior to March 31st of each school year, each teacher will be given the opportunity of expressing any desired change in assignment by completing the Staff Survey and Transfer Request Form (Attachment 2). A teacher who requests consideration for a vacancy will be notified of a vacancy in the area stated on his/her Staff Survey and Transfer Request Form. During the summer break, such notification shall be by the District's website. Teachers may sign up for automatic email alerts about postings.
3. The needs of the school district are the major criteria for making instructional and non-instructional assignments. Other factors which shall be considered in developing equitable work loads are: size of the class, new programs, specialized needs of a typical student, specialized talents of the teacher, formal preparation as authorized on the state certificate/license, and personal preference of individual staff members.
4. An annual assignment notice shall be provided to each teacher prior to the end of the school year. Assignment at a later date or changes in assignment may be made by the administration if, in its judgment, it is the best interest of the school system. Every effort will be made to assign teachers to classes which correspond to their formal preparation, but exceptions may be made for a justified cause. The assignment notice shall include:
 - a. Subject area, course, and/or grade levels to be taught;
 - b. Building to which the teacher is assigned.

5. In addition to the classroom instructional assignment, teachers may be assigned on an equitable basis, as determined by the building principal, such non-instructional assignments as supervision of homeroom, corridors, lunchrooms, playgrounds, and other tasks necessary for operating a school building. These tasks are considered a part of the total teaching assignment except when the Board approves certain duties deserving compensation above the salary schedule.
6. It is desirable to provide teachers the opportunity to be considered for vacancies. Notice of a job vacancy (for either a teaching, supplemental or administrative vacancy), along with its requirements, will be posted in each building on the bulletin board nearest the teachers' mailbox, prior to its being filled. During the summer months administrative, teaching, and supplemental vacancies will be listed on the District's website. Teachers may sign up for automatic email alerts about postings. Teachers who apply for such vacancy within seven (7) days of the posting of the notice shall be given full consideration for any vacancy based upon area of competence, certification, evaluation, and length of service in the District.
7. When vacancies meeting specific requests are available, the teacher requesting such change will be given first consideration, providing that teacher is qualified for the position available.
8. In order to ensure effective delivery of instruction by appropriately certified and licensed individuals, a teacher must maintain his/her teaching certification/licensure for at least five (5) years after his/her date of hire. After that time, if the teacher has not taught in an area in which he/she is certified/licensed in any rolling five (5) year period, the teacher may drop that area of certification/licensure with notice to the Superintendent/designee as per Ohio Department of Education requirements, to be submitted on or before March 31 of the fifth (5th) year of the rolling five (5) year period via Attachment 2. For a teacher on a leave of absence, the rolling five (5) year period would encompass only years of active teaching service.
9. Teachers are expected to maintain on file with the Superintendent's office paperwork reflecting current licensure. In the event a teacher does not timely complete his/her coursework requirements or timely file the paperwork to renew the teacher's licensure prior to the start of the school year, the teacher will be expected to apply for and receive a substitute license and will teach under the substitute license until the teacher's regular teaching license is renewed. The teacher will be paid at the hourly substitute teaching rate of pay and will not be eligible for benefits for the period in which they are teaching under the substitute license. The teacher will not be entitled to any retroactive reinstatement of the teacher's regular salary upon receipt of the renewed license. In the event the teacher does not obtain the renewed license prior to the start of the second grading period, the teacher will be terminated for cause pursuant to ORC 3319.16. This

deadline of the start of the second grading period shall be mutually extended if it is violated for reasons beyond the teacher's control.

E. Position-sharing

Position-sharing shall refer to an option available to pairs of teachers to share one full-time position.

1. Position-sharing opportunities shall be granted pursuant to the teachers' seniority, i.e., the total years of seniority in the partnership.
2. The total number of position-sharing teachers shall not exceed ten (10) teachers, i.e., five (5) pairs per year. In no event will there be more than one (1) position sharing arrangement at any grade level in any K-3 elementary building. At the 4-5 elementary building there will be no more than three (3) position sharing arrangements with no more than one (1) per grade level/specials/special education unless the administrator determines the master schedule can accommodate an exception.
3. Initial applications for position-sharing teachers must be submitted not later than February 1st. Teachers who wish to reapply for the following year must submit their applications by March 1st. Each teacher shall assume the responsibility for finding his/her position-sharing partner but may request assistance from the Director of Human Resources' Office in finding a position-sharing partner. No teacher shall be required to position-share.
4. On or before April 1st the position sharing teams must submit for approval to the building principal a Position Sharing Plan ("Plan") which must address the following elements:
 - a. A full description of the teaching techniques, methods, and grading practices to be employed by the team;
 - b. How the team will communicate with one another to ensure information learned during school meetings or during the work day is timely shared;
 - c. How the position sharing teachers will handle parent or third-party communications and ensure both teachers are fully up to date on all issues and concerns regarding their students;
 - d. How the teachers will effectively communicate during the course of the work day, work week and school year to ensure seamless communication between the teachers; and
 - e. How the teachers will divide up instruction and planning time.

5. Each teacher shall acquire one-year seniority for each year of position-sharing work providing each teacher works a minimum of 120 days per year or is scheduled to work two and one-half (2 ½) days per week. For example, a Kindergarten teacher with a fifty percent (50%) contract would be required to perform two and one-half (2 ½) days of instruction per week.
6. Position-sharing teachers shall receive a pro-rata share of all salary and benefits as contained in this contract.
7. The schedule to be worked by position-sharing teachers shall be determined by the administration with input from the teachers involved. The Plan developed by the team (see paragraph 4, above) will reflect the master schedule.
8. A teacher with documented professional difficulties shall not be eligible for position-sharing.
9. Position-sharing applications will be considered annually. Upon the dissolution of a partnership, the individual position-sharing teacher shall be guaranteed the contract that he/she held prior to position-sharing.
10. Position sharing arrangements will be evaluated on an ongoing basis by the administration to determine if the Plan is being effectively implemented. The evaluation may include classroom observations and meetings with the team members. The team will meet with the administrator at least two (2) times prior to the end of the first semester to formally review the effectiveness of the position sharing arrangement. Any concerns related to the effectiveness of the position sharing arrangement will be promptly communicated to the team, which will be responsible for developing a strategy to address the concern(s), including revising the Plan. If the concerns persist, the team will be advised prior to February 1st that the arrangement will not be approved for the following year. An unsuccessful position sharing arrangement will not preclude a teacher from applying for another opportunity with a different partner.
11. Position-sharing teachers who teach in the morning must attend all morning meetings; position-sharing teachers who teach in the afternoon must attend all afternoon meetings. Position-sharing teachers must attend all required evening meetings.
12. If more than five (5) pairs of teachers apply to position-share in any school year, anyone who has position-shared for at least three (3) years would not be eligible to position-share in that year.
13. Not being able to position-share during a particular school year does not prevent a teacher from requesting a part-time assignment. However, once a teacher has entered into a contract for a part-time position, he/she is only guaranteed that percent of employment in future years.

F. Meetings

1. Whenever possible under all existing circumstances, building meetings will be on an “as required” basis with an advanced agenda and scheduled at convenient times. For purposes of this section, teachers teaching in more than one (1) building shall be assigned to only one (1) building’s meetings.
2. When any teacher attends a meeting during his/her guaranteed forty (40) minute lunch, he/she shall be compensated for this time at his/her pro-rated per diem rate if the meeting was requested by the building administrator.
3. Staff meetings shall be scheduled at convenient times and an agenda shall be provided at least twenty-four (24) hours in advance of the meeting. There can be a maximum of thirty (30) hours of administratively-called meetings per year (exclusive of student disciplinary meetings, IEP meetings, and emergency meetings called by the Superintendent).
4. The Administration will notify teachers in advance of any meetings that will be recorded or broadcast in part or in full.
5. The Administration may utilize up to ten (10) minutes of additional flex-time twice a month to schedule forty (40) minute administratively-called staff meetings. Staff meetings utilizing flex-time must be scheduled a minimum of two (2) weeks in advance or staff attendance will not be required for any additional time beyond the contractual day. Minutes utilized under this section are part of the thirty (30) hours of administratively-called meetings.

SECTION 19 – SPECIAL EDUCATION

A. Inclusive/Collaborative Team Notification

Inclusive/collaborative programs should be designed to meet individual student needs and, therefore, need to be flexible from year to year. Staff will be notified if they are to be part of any inclusion/collaborative team for the following school year, if possible.

B. Volunteers

Regular education teachers who volunteer for inclusive/collaborative programs will receive priority for participation.

C. Training

Teachers in need of training (as requested by either the teacher or administrator) will be provided such by the district (in house or otherwise). Every effort will be made to provide this training before the student is in his/her classroom. Training, if needed, will also be available during the first year a teacher has included students in his/her classroom.

D. Class Size

Efforts will be made to reduce class size for regular classroom teachers involved in inclusive programs which require additional planning for special education students.

E. Common Planning Time

Common planning time, where it is possible, for regular and intervention specialists who are involved in these programs needs to be figured into the building master schedule.

F. Planning Time

As incentives for participation in these programs, additional collaboration/planning time or compensation for planning required outside the school day will be offered to staff, which may take the form of the following:

1. Planning time beyond the school day
 - a. Participation is limited to those teachers who work together in a collaborative manner within the regular classroom.
 - b. “Paid planning hours” can be applied for, through the building principal by regular teachers, and/or intervention specialists, and/or related service personnel who require time to collaborate and plan together outside of the school day. Paid planning time may include before the school day, after the school day, or during lunch. Compensatory time may be applied for in lieu of payment by intervention specialists during the regular school day for times they are not responsible for students (i.e., assemblies, field trips, parties, etc.).
 - c. Paid planning hours are limited to fifty (50) hours per semester and shall be paid at the rate of .0005 of the BA base salary per hour.
 - d. For circumstances that occur outside the above parameters, the building principal has the discretion to make an exception.
2. Planning time, where possible, as additional release time (examples of release time options would be special duty, homeroom, study halls, etc.).

G. IEP Writing

Intervention specialists, developmental pre-school teachers, and school psychologists will be assigned, by the Director of Human Resources, one IEP writing workday for every four (4) IEPs on a case manager’s caseload. These days must be utilized in full-day increments and scheduled ahead of time with building administration, which shall not be unreasonably withheld. IEP writing may occur at an off-site location.

1. Autism Scholarship Program
 - a. In order to assist the Brecksville-Broadview Heights school psychologists with compensation for the evaluation responsibilities created by the Peterson and Autism Scholarship Programs in non-public schools within the Brecksville-Broadview Heights City School District, the obligation to perform such evaluations will be rotated through the school psychologists within the District according to full-time status (e.g., half-time psychologists would be assigned half the cases of a full-time psychologist). The school psychologist may opt out of the rotation by the first teacher day of school and the decision will be in effect for the remainder of that school year, and compensation will not be available to him/her. Once a school psychologist chooses to be part of the rotation, he/she must accept the responsibilities for the remainder of the given school year.

- b. Report writing for the evaluations conducted for non-public schools will be done outside the work day and be compensated One Hundred Eighty Dollars (\$180.00) per student that requires a full report. Compensation for evaluations will only occur for fully-completed evaluation team reports and not for any student where the District and parent have determined that the reevaluation is not necessary (a "waiver"). Designated hours shall be submitted using the adopted time sheet.

2. In the event that an IEP is added to an intervention specialist's caseload in a manner that cannot be resolved under Section 19(G), the BEA President and the Director of Human Resources shall resolve the allocation of time needed to complete the assignment by mutual agreement. For example, when an Intervention Specialist with four (4) IEPs is assigned one (1) additional student.

H. Multi-Factored Evaluation

Any teacher involved in multi-factored evaluation (initial or triennial review) may be released one-half (½) day a month for testing and observation of the student(s) as deemed necessary by the building administrator.

I. Speech/Language Pathologists

1. Each speech/language pathologist shall be given NEOEA Day and President's Day as an extended time day in order to write IEPs.
 - a. If a speech/language pathologist wants to attend an NEOEA Day activity, he/she shall consult with the Director of Pupil Services in order to determine a different extended time day which must be scheduled on a day that is not part of the school calendar.
 - b. Payment for the extended time shall be made over the course of twenty-six (26) pays.
 - c. The speech/language pathologist will not use planning and conference time to deliver instructional services to his/her students.
2. Additionally, the speech/language pathologist will be provided with two full days or four half days of release time for the purpose of writing and maintaining a student's IEP. The speech/language pathologist will be responsible for requesting permission from the building principal at least five work days in advance and for reporting the absence through Renhill as a "professional day". Release time will not be available:
 - the first or last day of the school year;

- any non-student school calendar day;
- the day before or after holidays and long weekends;
- during District-wide professional development days including waiver days and in-service days.

J. IEP Meetings

Each teacher who attends an IEP meeting for non-public students outside the teacher day shall be compensated at the rate of .0005 of the BA base salary per hour for each hour of meeting attendance.

K. Alternate Assessments

Each Intervention specialist who is required to complete an alternate assessment for a student will be granted release time for the purpose of assembling the alternate assessment materials. The intervention specialist will be given two (2) hours for each alternate assessment for which the teacher is responsible. Should the teacher require more time due to special circumstances, arrangements can be coordinated through the Director of Pupil Services.

L. Special Education Case Loads

1. Each intervention Specialist will receive with his/her student roster for the new school year a designation of where the teacher's assignment falls on the Office for Exceptional Children (OEC) case load ratios chart.
2. In the event the teacher's case load ratio exceeds the OEC requirements, the teacher will request a meeting with the building principal to discuss alternative solutions. The Director of Pupil Services and B.E.A. President may also participate in this meeting. The teacher will also provide input into any waiver request and will receive a copy of a waiver request filed with OEC.

SECTION 26 – EVALUATION

A. Purpose

This evaluation section shall replace O.R.C. 3319.111 in the implementation of O.R.C. 3319.11, or any provision of this contract adopting, modifying, or replacing O.R.C. 3319.111.

Any subsequent changes to this policy shall be deemed a mandatory subject of bargaining and shall be addressed by the parties during negotiations for a successor agreement.

Nothing in this provision shall prevent the Board and the BEA from negotiating changes to OTES during the duration of this agreement so long as the parties do so by mutual agreement only. Any proposed changes to OTES must be ratified by the BEA and the Board.

The purpose of evaluation is to:

1. Provide the staff with a continuous program of evaluation.
2. Provide a cooperative process for evaluator and teacher to work together in improving areas of performance.
3. Recognize performance areas that are successful and identify performance areas needing improvement.
4. Develop performance guidelines and standards for both self-appraisal and evaluation by supervisory personnel.
5. Provide information which may be utilized in the consideration of limited contract renewal or contract termination.

B. Procedures

1. Evaluators

- a. Evaluation of a teacher shall be conducted by the teacher's immediate supervisor, building principal, or assistant principal or by the Director of Pupil Services. In the case of potential non-renewal or termination, a teacher may also be evaluated by the Director of Human Resources or his/her designee.
- b. No teacher shall have more than one evaluator per year.
- c. Any evaluator must be OTES AND OSCES trained when required.

- d. Any teacher who is scheduled to be evaluated shall be notified by September 30th.

2. Criteria

The following schedule of observations and evaluations are minimums. Additional observations and evaluations may be conducted as deemed necessary and do not require the completion of the pre- and post-observation process. All observations subject to the pre- or post-observation reports shall be for at least thirty (30) minutes and shall be conducted with the full knowledge of the teacher. Evaluations shall not be limited to classroom observations.

3. Evaluation Timeline for All Certified Staff

On or before September 15 th	Teachers with “Below Expected” Growth must develop and submit their Improvement Plan.
On or before September 30 th	Teachers must be notified that they are being evaluated.
On or before October 1 st	Student Learning Objectives (SLOs) must be submitted to the SLO Committee for approval. All revisions must be submitted within 10 school days.
On or before October 1 st	Teachers with “Expected” and “Above Expected” Growth must develop and submit their Growth Plan.
On or before October 15 th	Goal Setting Sections A and B submitted to evaluator (Non-OTES/OSCES staff only).
On or before December 15 th	First Observation Cycle has been completed for all teachers except those on the off-year evaluation cycle.
Before end of 1 st Semester	Notice of potential for recommendation of non-renewal must be provided to teacher.
On or before March 1 st	Second Observation Cycle for teachers new to the district, teachers applying for Continuing Contract, teachers in the last year of their Limited Contract.
On or before April 30 th	Second Observation Cycle has been completed for teachers with a Continuing Contract, teachers in the first year of a two-year Limited Contract, or the first or second year of a three-year Limited Contract.
On or before April 30 th	Third Observation Cycle for teachers new to the district, teachers applying for Continuing Contract, and all teachers in the last year of their Limited Contract.
On or before April 30 th	Off year observations must be completed for skilled and accomplished teachers.
On or before May 1 st	Teacher SLO Growth Data must be submitted to their evaluator.
On or before May 1 st	Goal Section C must be submitted to their evaluator (Non-OTES/OSCES staff only).
On or before May 10 th	Final Evaluation Report is due to teacher.

4. Evaluation Forms Non-OTES and OSCES Staff

- a. The observations listed above require the completion of the Pre-Observation Form (Attachment 13) prior to the observation. This form can be completed by meeting with the evaluator, solely by the teacher, or with the help of a mentor.
- b. Observations listed above require a written Observation Form (Attachments 16-18) which must follow within seven (7) work days of the observation. A conference is encouraged after each observation.
- c. If the teacher opts for self-evaluation (goal setting), the teacher must complete the Goal-Setting Report (Attachment 14) by October 15th. The Self-Evaluation of Goal Achievement of the Goal-Setting Report (Attachment 14) must be completed by May 1.
- d. All necessary forms can be found in the main office of each building and stored electronically on the building server. A summary of the evaluation documents can be found in Attachment 12.
 - (1) Goal-Setting may be initiated in three ways:
 - (a) teacher developed, principal acknowledged
 - (b) teacher/principal consultation
 - (c) principal recommendation
 - (2) If the two parties cannot agree, the standard observation/evaluation format will be used following the same timeline.
 - (3) The goals will be in alignment with the Ohio's Standards for the Teaching Profession.
- e. The Evaluation Report (Attachments 16-18) and conference must be conducted on or before the prescribed timeline dates. The evaluator and teacher will discuss and sign the written Evaluation Report (Attachments 16-18). The signature by the teacher indicates that the report has been discussed and explained; it does not necessarily indicate approval by the teacher. If the teacher wishes, he/she can submit a written response to the report which will be attached to the Evaluation Report (Attachments 16-18).

5. Improvement Plan Report

When a teacher receives at least one "Needs Improvement" on the Observation Form, the teacher may be placed on an improvement plan. The teacher and the administrator will develop a plan in a collaborative manner to make the necessary improvements. Teachers placed on an improvement plan will be observed/evaluated as teachers new to the district. Areas that need improvement will be documented on the Improvement Plan Report (Attachment 15).

6. Exemptions

Teachers employed after the stated observation and evaluation deadlines will be exempt from the prior schedule. However, all new teachers will have a minimum of one (1) observation and evaluation per school year.

7. B.E.A. Representative

A teacher may have a B.E.A. representative present during the evaluation conference and may have a B.E.A. representative present during the Improvement Plan development meeting.

8. Observation Scheduling

There will be at least three (3) weeks between the scheduled observations set forth in the subsection B.3 of this Section. The last scheduled observation shall be made on or before April 1st of each year for teachers on limited contracts and on or before May 1st of each year for teachers on continuing contracts.

9. Evaluation Committee

- a. The Evaluation Committee shall consist of 5 members from each party's team. The Superintendent and B.E.A. President shall be responsible for appointing individuals to their respective teams. This number shall include the possible participation of Board counsel and/or the OEA/NEA Labor Relations Consultant.
- b. Meetings shall be scheduled by mutual agreement of the Evaluation Committee members with a minimum of one (1) per year.
- c. By February 15, 2012 the Evaluation Committee shall produce a revised Evaluation Procedure that shall be presented to the Board and the Association for ratification. Once ratified by both parties, this procedure shall be incorporated into this agreement, or its successor, and will be into effect for the start of the 2012-2013 school year.

SECTION 30 – STAFF REDUCTION

A. Reasons

If the Board determines it is necessary to reduce the number of teachers it may elect to suspend the contracts of teachers to accomplish the reduction but only in the manner and pursuant to the provisions contained herein. A reasonable reduction shall occur only for one or more of the following reasons consistent with ORC 3319.17:

1. Decrease in pupil enrollment in the District.
2. Suspension of schools or territorial changes affecting the District.
3. Return to duty of teachers after leaves of absence.
4. Financial reasons.

The number of teachers reduced will be kept to a minimum by not hiring replacements, if practical, for teachers who retire, resign, or are terminated or non-renewed. However, it may be necessary to hire some replacements if teachers in the system do not possess the certification/licensure for the position to be filled.

B. Order of Reduction

Within each area of certification/licensure, the Superintendent's recommendation will be as follows:

1. Teachers holding limited contracts shall be suspended in accordance with their seniority. The least senior teacher in the area of certification/licensure will be suspended first.
2. Continuing teacher contracts shall be suspended only after all limited contracts in the area of certification/licensure. The least senior teacher in the area of certification/licensure will be suspended first.

C. Seniority

1. Seniority is defined as the total consecutive years of employment in the District. One hundred twenty (120) days or more in any one school year of at least three and one-half (3-1/2) hours per day shall give a teacher one (1) full year of seniority credit; one hundred twenty (120) days or more in any one school year of fewer than three and one-half (3-1/2) hours per day shall give a teacher one-half (1/2) year of seniority credit. Any teacher with fewer than one hundred twenty (120) days in any one school year shall receive no seniority credit for that year.

2. Seniority shall not be interrupted or affected by authorized leaves of absence approved by the Board and/or the Superintendent. However, a certificated/licensed employee on an unpaid authorized leave as provided in this Agreement shall not accrue seniority when on such leave with the exception of sabbatical leave. Persons on sabbatical leave shall accrue seniority while they are on sabbatical leave. A teacher, upon return from an unpaid leave, shall hold the seniority he/she possessed at the commencement of leave except for those who were on sabbatical leave. Those teachers on sabbatical leave increase their seniority by the year(s) they were on sabbatical leave.
3. If two or more teachers have the same length of consecutive years of service, seniority shall be determined using the criteria below in the order listed.
 - a. Total years plus or minus the day by day calculation of partial years. Any part of a day worked constitutes a full day.
 - b. Board hiring dates.
 - c. Date on the teacher's first job application that led to employment.
 - d. Where applications have been submitted electronically, the electronic time stamp shall be used as a tiebreaker.

D. Recall

Teachers whose contracts have been suspended shall be placed on a recall list by the Board and recalled when a teaching position in their area of certification/licensure becomes vacant or is created for which any of such teachers are or become certificated/licensed, as set forth below.

1. Subject to paragraph 3, below, teachers on limited contracts that have been suspended shall be placed on the recall list for three (3) years after the beginning of the school year immediately following the reduction in force after which time their contracts shall automatically expire without recourse through Section 29 of the Agreement.
2. Subject to paragraph 3 below, teachers on continuing contracts that have been suspended shall have the right of restoration to continuing service status without limitation.
3. Refusal of an offered full-time position (or to the status the teacher held prior to the reduction in force if less than full-time) in the Brecksville-Broadview Heights City School District shall result in removal from the recall list.

4. Refusal or acceptance of a long-term substitute position or a regular teaching position that is fewer hours than the teacher's previous position in the District while the teacher is on the recall list does not remove the teacher from the recall list.
5. Any teacher whose contract was suspended because of a reduction in force who is again hired by the District shall, upon his/her return, be increased one (1) step on the salary schedule from the salary step placement he/she held prior to the suspension. Additionally, he/she shall be given appropriate salary step credit for each full-time teaching year (a year being defined as at least 120 days) in another school district after the Board suspended his/her contract, up to three (3) additional years. The rehired teacher shall also be placed on the salary schedule column commensurate with his/her educational training.

E. Notice of Job Offering

Notice of vacancy shall be sent to the teacher by registered or certified letter addressed to the teacher's last known address. It shall be the responsibility of each teacher to notify the Board of any change in address, whether temporary or permanent. A teacher shall have two (2) days, excluding Saturdays, Sundays, and holidays, from the date of receipt of notification of the opening to indicate his/her intent to accept or reject reemployment, but not to exceed a total of ten (10) days from the mailing date excluding Sundays and holidays; otherwise, such teacher shall lose all rights to be reemployed and shall have no recourse through Sections 28 or 29 of the Agreement.

F. Recall vs. Hiring

No new teachers shall be hired in an area of certification/licensure while there are teachers on the recall list in that area of certification/licensure.

G. Contract Suspension

A teacher whose contract will be suspended because of reduction in force means that a teacher will be placed in an inactive state of employment from an active state of employment. A teacher whose contract will be suspended shall be notified of such suspension by April 30th but in no event fewer than thirty (30) calendar days prior to the suspension. A copy of the reduction list (name, seniority, and current teaching field) shall be provided to B.E.A. at the same time. After the Board action, the B.E.A. will be promptly provided with an updated recall list.

1. A teacher whose contract is suspended because of reduction in force who has completed the school year but whose reduction in force begins with the next school year shall receive all fringe benefits outlined in Section 34 of the Agreement through August and shall receive his/her paychecks through the summer unless he/she opted for lump sum payment.

2. A teacher whose contract is suspended because of reduction in force during any school year shall receive all fringe benefits outlined in Section 34 of the Agreement until the date he/she is no longer in active pay status because of the reduction in force. Any compensation owed to the teacher shall be paid as a lump sum payment.

H. Dispute Resolution Process

Any dispute regarding alleged noncompliance with the provisions of the statute or the procedures set forth in this Article shall not be subject to the grievance procedure in Section 10, but rather shall be resolved through the judicial process.

During the ~~2012-2013 and 2013-2014~~ 2019-2020 and 2020-2021 school years only, the parties agree that the evaluations of members of the bargaining unit shall be considered comparable to one another for the purposes of the negotiated Reduction in Force. As such, the provisions of Section 30 shall serve as the procedures following by the Superintendent and Board when making staff reduction decisions involving the suspension of contracts during the ~~2012-2013 and 2013-2014~~ 2019-2020 and 2020-2021 school years.